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CONSTANCE R. WHITE
COUNTY CLERK
NO: 24-2-05691-8

SUPERIOR COURT OF THE STATE OF WASHINGTON
FOR PIERCE COUNTY

LEVAR COUCH, an individual,

Plaintiff,

v.

ALLEYCAT TACOMA LLC d/b/a ALLEYCAT
PATIO AND BAR,

Defendant.

NO.

COMPLAINT

Plaintiff Levar Couch alleges the following:

I. PARTIES

1. Plaintiff Levar Couch is a resident of Pierce County, Washington.

2. Alleycat Tacoma LLC d/b/a Alleycat Patio and Bar ("the Alleycat") is a Washington limited liability company doing business in Pierce County, Washington.

II. BACKGROUND

3. The Alleycat operates a Tacoma bar located at 2708 6th Avenue.

4. The Alleycat is adjacent to an alley known as Anderson Alley. Anderson Alley runs parallel to S. Anderson Street, which is half a block to the west of Anderson Alley.

5. Since opening in 2019 there have been numerous violent incidents at the Alleycat and its immediate vicinity.

1 6. On January 7, 2022, there was an incident involving the discharge of a
2 firearm at or near the Alleycat.

3 7. The January 7 Computer Aided Dispatch ("CAD") Incident Report indicates
4 that four males were arguing and that one of them discharged a firearm into the air.
5

6 8. On January 29, 2022, an Alleycat customer punched another customer in
7 the mouth.

8 9. On March 23, 2022, there was an altercation involving three people at the
9 Alleycat in which one of the individuals stated that her boyfriend had a gun.

10 10. On April 12, 2022, a customer at the Alleycat tried to fight with other
11 customers and threw a glass before leaving. According to the CAD Incident Report, the
12 individual returned and attempted to assault customers and employees.

13 11. The April 12, 2022 Incident Report states the customer "slapped at least
14 one customer and attempted to assault several others." Multiple Alleycat customers called
15 9-1-1 to report that they were locked inside the bar by the Alleycat staff because the violent
16 customer remained outside the bar.

17 12. On May 24, 2022, there was a fight outside of the Alleycat involving five
18 males, two of whom "kept reaching in [their] pocket[s]," as if to retrieve a weapon.
19

20 13. On June 12, 2022, there was a fight inside the Alleycat. The police CAD
21 Incident Report indicates a witness "heard someone say gun drawn" A responding police
22 officer reported: "[the Alleycat's] bouncer stated there was a fight but no issues now. No
23 one stayed on scene for contact."

24 14. On June 23, 2022, an Alleycat customer physically assaulted two other
25 customers, punching one, and then refused to leave.

26 15. On September 17, 2022, a Washington State Liquor and Control Board

1 officer inspected the Alleycat and noted, "many youthful appearing patrons ... I mention[ed]
2 to security the need for through [sic] ID checking."

3 16. On October 9, 2022, an Alleycat patron called 9-1-1 to report that he saw
4 two males throw a female over one of their shoulders and carry her out of the bar. The
5 Alleycat customer reported that he thought the two males drugged the female because she
6 went from awake to throwing up and incoherent after one drink. The Alleycat bartender told
7 police that the female and two males came in together and "appeared to be family. Female
8 got too drunk and uncle carried her out."

9 17. On November 25, 2022, an Alleycat customer assaulted another customer.
10 The CAD Incident Report notes "aggressor still inside LOC."

11 18. A March 9, 2023 CAD Incident Report indicates a male in front of the Alleycat
12 threatened to physically harm Alleycat customers.

13 19. On May 6, 2023, a male was assaulted near the entrance of the Alleycat and
14 was found lying on the ground in a pool of blood. The CAD Incident Report states, "in front
15 of entrance [of the Alleycat], 20 subjs loitering, then RP heard thud, saw male on ground
16 and blood on ground According to witnesses, the male knocked out downed four shots
17 and tried to talk to multiple women ... one of the males sucker punched the guy and
18 knocked him out."

19 20. On May 20, 2023, multiple customers reported that a fight broke out
20 between several male customers near the pool table at the Alleycat. The CAD Incident
21 Report states "RP thinks some people are injured. Someone is bloody." The Alleycat closed
22 its business at 11:42 p.m. because of the assault.

23 21. A July 23, 2023, CAD Incident Report indicates an Alleycat customer
24 reported a male assaulted and knocked out a male victim in the Anderson Alley adjacent
25
26

1 to the Alleycat. The report states, "male just now running WB on 6th Ave ... bleeding badly
2 from his face."

3 22. On August 24, 2023, there was a shooting at the Alleycat.

4 23. The next day following the August 24 shooting, on August 25 the owner of
5 the Alleycat Robert Norris called 9-1-1 and stated, "I own a business in Tacoma on 6th Ave.
6 Last night we had a shooting out, basically like a drive-by, 9mm went off, like several shots,
7 and definitely like gang affiliated. It was at 2708 6th Ave." The 9-1-1 dispatcher then asked,
8 "you didn't report it last night?" The Alleycat owner responded, "I did and I spoke to the
9 police officer. But my staff, I own a bar called the Alleycat, and I did call my staff, they were
10 freaked out. What I'm trying to get at, there is a presence on 6th Avenue right now between
11 Jazzbones and O'Malley's, all in that area right now there is a bunch of gangbangers and
12 there is some shit that is probably unfortunately going to flare up. My staff is warning me
13 and I'm calling you guys because I'm hoping that I can at least get a little presence of
14 patrolling, you know something. The officer I spoke to last night was just like, I found 9mm
15 casings all over the alley today."
16

17 24. Mr. Norris called back and said, "I was speaking to dispatch previously ... do
18 you have any details what I had said? I have a business on 6th Avenue in Tacoma, and last
19 night we had a, basically like a drive by type shooting. Probably like a teenage kid came
20 running out of the alley with a 9mm just lighting up cars and all in front of my business. And
21 the name of my business is the Alleycat and it's a bar on 6th Avenue right there. Anyways,
22 the people that are like affiliated with all of this that's going on they're all claiming,
23 whatever, hilltop crip or whatever they are. And there is just a lot of activity happening right
24 now on 6th Avenue and I was just hoping I spoke to an officer last night after this happened,
25 because my staff they had to lock themselves into our building it was at 2:00 a.m. 1:57
26

1 a.m. or something, while gunshots were going off, bullets flying everywhere almost hitting
2 people, thankfully no one got hit, and this same group that did that is out tonight. And when
3 people are walking down the street I'm having people call me, because I'm a business
4 owner and you know, that know me and they're like these people are out here again and
5 they're coming up to people like on the street and threatening them, like you know, and
6 putting their hands down their pants like they have guns, you know, asking them 'you all
7 good' 'you got a problem?' They're basically at Shakabrah and right in that area across the
8 street from there and they're all just kind of collaborating and they're doing donuts in the
9 street and burnouts. I was hoping and requesting some kind of presence from law
10 enforcement, just to at least let them know"

12 25. The 9-1-1 dispatcher asked, "So how many people are in front of the location
13 right now?"

14 26. The Alleycat's owner responded, "Right at this moment, I'm not there but I've
15 been told there's about six to eight people and there's different people driving around in
16 cars. It's almost like they're casing like they're waiting for something, that's what I've been
17 told."

18 27. The 9-1-1 dispatcher asked, "Do you think they're involved in a gang?"

19 28. The owner responded. "Yea. They definitely are. And I told kind of the main
20 guy that is like older guy that's kind of in control of these younger kids, there's probably
21 like 5- or 6 teenagers, teenager age kids, the guy that I know and know of, he's older
22 probably like 40. I asked him, he came into my bar, and you know this is today, and you
23 know we, my staff asked him like, hey, can you, until stuff like calms down, because
24 obviously the shooting last night, we need to like take a little break. Tried to do it in the
25 most respectful way."
26

1 29. The 9-1-1 dispatcher responds, "I'm sorry we are really busy tonight, so did
2 you see any weapons, did you see any or did anybody report any weapons on them
3 tonight?"
4

5 30. The owner responds, "Yea. They have guns. Yea. They have guns. For sure
6 9mm's. Like I said I found a bunch of shell casings. It's the same people that did that last
7 night."
8

9 31. The 9-1-1 dispatcher asks, "Ok. Could you tell if any of them were high or
10 intoxicated."
11

12 32. The owner responds, "Um, I would definitely say yes. So my hope is that we
13 can get at least a little presence in the neighborhood, I mean you can park in front of my
14 business. I don't know what the protocol is from your guy's side."
15

16 33. On September 10, 2023, an Alleycat customer physically assaulted an
17 Alleycat staff member.
18

19 34. On September 16, 2023, a Washington State Liquor and Cannabis Control
20 Board officer met with Alleycat "staff and door security, talk on overservice and area
21 issues."
22

23 35. On November 1, 2023, a caller from the Alleycat reported that there was a
24 person in a car with a bloody Halloween mask waving around a pistol in the Anderson Alley.
25

26 36. On November 5, 2023, Levar Couch went to the Alleycat with his friend,
James Reha, to play pool.
27

28 37. Alante Peterson was at the Alleycat with his girlfriend, who upon information
29 and belief was under the age of 21.
30

31 38. The Alleycat's bouncers did not check customers for firearms or weapons
32 before the customers entered the bar.
33

1 39. The Alleycat's bouncers did not check customers' bags for firearms or
2 weapons before customers enter the bar.

3 40. Mr. Peterson was wearing a fanny pack inside the bar.

4 41. Inside Mr. Peterson's fanny pack was a handgun.

5 42. Upon information and belief, there was a large physical altercation in the
6 beer hall outdoor area of the Alleycat.

7 43. At or around the same time, a verbal disagreement between Mr. Reha and
8 Mr. Peterson occurred near the pool table.

9 44. Mr. Peterson pulled out his firearm from his fanny pack and shot and killed
10 Mr. Reha.

11 45. Mr. Peterson shot Mr. Couch.

12 46. An imaging analysis of Mr. Couch's injuries upon admission to the
13 Emergency Room describe the bullet wounds: "Foci of gas within the scrotal sac identified
14 consistent with entrance site of the gunshot. Foci of gas along the trajectory of the gunshot
15 identified within the LEFT inguinal region as well as the adductor muscles. Shattered injury
16 of the proximal femoral shaft identified with multiple bullet fragments within the femoral
17 intramedullary space as well as small bullet fragments in the LEFT posterior thigh. The exit
18 site appears to be in the LEFT posterior thigh."
19

20 47. Mr. Peterson shot and killed a woman and shot and wounded other Alleycat
21 customers.

22 48. The Alleycat's bouncers fled from the scene before emergency medical
23 personnel arrived.
24

25 **III. CAUSES OF ACTION**

26 49. Plaintiff Levar Couch was business invitee while on the premises of the

1 Alleycat and therefore the Alleycat owed Mr. Couch the duty to protect him from criminal
2 harm and reasonably foreseeable criminal conduct by third persons.

3 50. Defendant knew or should have known from past experience and/or from
4 the place or character of its business that criminal conduct harming its patrons was
5 reasonably foreseeable.
6

7 51. The Alleycat failed to take reasonable measures to prevent such harm and
8 to warn its business invitees about such risks.

9 52. Because Mr. Couch was a business invitee, he had a special relationship
10 with the Alleycat, which owed him a duty to provide a safe environment and to take
11 reasonable action to protect Mr. Couch from criminal acts of third parties.

12 53. The Alleycat violated its duty to ensure its property was free from hazards to
13 its invitees. As such, and also because of Mr. Couch's special relationship with the Alleycat
14 as a business invitee of the type which was foreseeable, the Alleycat owed Mr. Couch the
15 highest duty of care.
16

17 54. The Alleycat breached its duty of care by failing to take reasonable
18 precautions to deter or protect against third party criminal activity, by failing to render
19 adequate security measures and services, and in creating an area which left patrons and
20 other business invitees vulnerable to an ambush and assault such as the one which was
21 perpetrated against Mr. Couch.

22 55. As a proximate result of the above-described negligence by the Alleycat,
23 Mr. Couch sustained injuries which are permanent, painful, and progressive and which
24 have required and will in the future require medical care, attention, and treatment.

25 56. The Alleycat's wrongful actions are the proximate cause of Mr. Couch's
26 damages, including past and future medical bills, wage loss, pain and suffering, disability,

1 disfigurement, loss of enjoyment of life, anxiety emotional distress, and other damages to
2 be proven at trial.

3 57. Mr. Couch has suffered and will continue to suffer economic and emotional
4 harm as a result of the Alleycat's wrongful actions.
5

6 IV. PRAYER FOR RELIEF

7 As a result of the wrongful acts described above, Plaintiff prays that this Court enter
8 judgment against Defendant:

9 A. For past and future economic damages in an amount to be proven at trial;

10 B. For past and future non-economic damages in an amount to be proven at
11 trial;

12 C. For past and future loss of income and loss of earning capacity in an
13 amount to be proven at trial;

14 D. For cost and disbursements, including reasonable attorney's fees and
15 costs as authorized by law or statute;

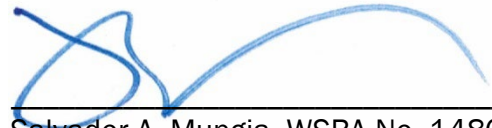
16 E. For prejudgment interest on special damages; and

17 F. For such other and further relief as the Court deems just and proper.
18

19 Dated this 1st day of February, 2024.

20 GORDON THOMAS HONEYWELL LLP

21
22 By



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